

# Manoj Kumar Bhaseen v. State of U.P. and 4 Others

High Court of Judicature at Allahabad · Division Bench, Court No. 32 · 22 September 2023 · 2023:AHC:184036-DB · WRIT - C No. - 32429 of 2023 · **Writ dismissed as withdrawn with liberty under clause 7.10**

## HEADNOTE

The Division Bench dismissed the writ as withdrawn, granting liberty, as prayed, to approach the Electricity Consumer Grievance Redressal Forum under Clause 7.10 of the U.P. Electricity Supply Code, 2005. The merits of the supply grievance were not decided.

## FACTUAL SUMMARY

Manoj Kumar Bhaseen filed Writ-C No. 32429 of 2023 in the Allahabad High Court against the State of Uttar Pradesh and four others. Mohd. Naushad Ahmad Khan appeared for him. The Chief Standing Counsel, Abhishek Srivastava and Baleshwar Chaturvedi appeared for the respondents. After some arguments, his counsel asked that the petition be dismissed as withdrawn, with liberty to approach the Electricity Consumer Grievance Redressal Forum under Clause 7.10 of the U.P. Electricity Supply Code, 2005. The order states no further facts of the supply dispute.

## HOLDING-UNITS

### HOLDING-UNIT · UP-2005::7.10

Liberty to approach the Consumer Grievance Redressal Forum

### HOLDING

On the petitioner's prayer after some arguments, the writ is dismissed as withdrawn, with liberty to approach the Electricity Consumer Grievance Redressal Forum under Clause 7.10 of the U.P. Electricity Supply Code, 2005. ¶ 1

## PRINCIPLE TAGS

**alternate-remedy-clause-7.10** The writ was not decided on merits. It was dismissed as withdrawn with liberty to invoke Clause 7.10 of the U.P. Electricity Supply Code, 2005. ¶ 1

**cgrf-7.10-alternate-remedy** The liberty reserved is specifically to approach the Electricity Consumer Grievance Redressal Forum under Clause 7.10, as counsel for the petitioner prayed. ¶ 1

## NOT DECIDED — NEGATIVE AUTHORITY

### NOT DECIDED — MERITS OF THE PETITIONER'S ELECTRICITY GRIEVANCE

The writ was withdrawn without a finding. Any grievance remains for the Consumer Grievance Redressal Forum under Clause 7.10. ¶ 1